
ZON-23-003 - Reporting Discrepancies

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To: mlaws@bouldercounty.org, "Case, Dale" <dcase@bouldercounty.gov>

Cc: Sarah Lorang <lorang.sarah@gmail.com>

Hi Dale & Martin,

I hope this message finds you well. I wanted to express my appreciation for sharing the property owner's response to your letter today (attached). Having briefly reviewed the information, I'd like to address a few points to ensure accuracy and clarity.

Firstly, in the provided data for the year 2006, the property owner reports an emission of 1,945 tons of NOx. However, according to APCD inspection reports covering the period from 1/1/2006 to 12/31/2006, the figure stands at 2,462 tons. Moreover, there appear to be discrepancies in the reported values for SO2, CO, and VOC over the same time frame when compared to APCD inspection records, and they appear to be 2005 figures, not 2006 figures.

For your convenience, I have attached the APCD inspection report pertaining to the 2006 period. Please pay particular attention to pages 30 and 31 for a detailed breakdown.

Additionally, it's worth noting that the property owner asserts that CEMs calculations were not corrected by 18% for moisture from 2000 to 2007. However, this claim does not align with the findings in the attached inspection report (see p35), which explicitly states, "The data shows that no moisture correction was made during 2002 through 2007."

These errors are very important, as the property owner would have Boulder County subtract 18% for the emission values reported in 2000 and 2001, and use 2005's air emissions figures instead of 2006's air emissions figures.

All of these errors will likely be attributed to convenient 'clerical errors.' However, when the calculations are made using accurate information and necessary adjustments, NOx emissions reach all time highs in the years 2000 (2,162), 2001 (2,362) and 2006 (2,019) and the increase of air pollutants resulting from the '97-'00 Lyons Plant Expansion project becomes crystal clear.

Furthermore, we have concerns regarding the clarity of the list of Modifications, Alterations, and Additions provided in Attachment 2. Notably, there is no mention of Oxygen Plant installations, despite the property owner's public announcements in the International Cement Review (May 2001). Additionally, the frequent use of the term "process upgrades" remains vague and open to interpretation.

Thank you for your time; we appreciate your continued efforts on this matter.

Regards,

Bart Lorang
Good Neighbors of Lyons

2 attachments



013-0003-001_2007 INSP RPT_05BO0703_11_7_2007 (1).pdf
9639K



Response to BOCO Oct 2023 letter.pdf
173K